

Section 2 in Joint Electricity Regulatory Commission (Terms and Conditions for Tariff determination from Renewable Energy Sources) Regulations, 2019

2. Definitions and Interpretations.

- 2.1 Words, terms and expressions defined in the Electricity Act, 2003, as amended from time to time and used in the Renewable Energy Tariff Regulations, 2019 shall have and carry the same meaning as defined and assigned in the said Act. 2.2 All other expressions used herein but not specifically defined in the Act or Regulations but defined under any other law passed by a competent legislature and applicable to the electricity industry in the State of Goa and UTs shall have the meaning assigned to them in such law. Subject to the above, expressions used herein but not specifically defined in the Act or any other law passed by a competent legislature shall have the meaning as is generally assigned in the electricity industry. 2.3 In the interpretation of this Renewable Energy Tariff Regulations, 2019, unless the context otherwise requires: (1) Words in the singular or plural term, as the case may be, shall also be deemed to include the plural or the singular term, respectively; (2) References to any statutes, Regulations or guidelines shall be construed as including all statutory provisions consolidating, amending or replacing such statutes, Regulations or guidelines, as the case may be, referred to; (3) Terms "include" or "including" shall be deemed to be followed by "without limitation" or "but not limited to" regardless of whether such terms are followed by such phrases or words of like import. 2.4 In the Renewable Energy Tariff Regulations, 2019, unless it is repugnant to the context: (1) "Act" means the Electricity Act, 2003 (36 of 2003) and subsequent amendments thereof; (2) "Auxiliary energy consumption" or "AUX" in relation to a period in case of a generating station means the quantum of energy consumed by auxiliary equipment of the generating station, and transformer losses within the generating station, expressed as a percentage of the sum of gross energy generated at the generator terminals of all the units of the generating station; (3) "Biomass" means wastes produced during agricultural and forestry operations (for example straws and stalks) or produced as a by-product of processing operations of agricultural produce (e.g., husks, shells, de-oiled cakes, etc); wood produced in dedicated energy plantations or recovered from wild bushes/weeds; and the wood waste produced in some industrial operations; (4) "Biomass gasification" means a process of incomplete combustion of biomass resulting in production of combustible gases consisting of a mixture of Carbon monoxide (CO), Hydrogen (H₂) and traces of Methane (CH₄), which is called producer gas; (5) "Biogas" means a gas created when organic matter like crop residues, sewage and manure breaks down in an oxygen-free environment (ferments); (6) "Capital cost" means the capital cost as defined in Regulations 13, 26, 30, 35, 40, 45, 55, 64 and 70 (of the applicable technology); (7) "Capacity Utilisation Factor (CUF in abbreviation)" means the ratio of actual gross energy generated by the project to the equivalent energy output at its rated capacity over the year; (8) "CERC" or "Central Commission" means the Central Electricity Regulatory Commission; (9) "Check Meter" means a meter, which shall be connected to the same core of the current transformer (CT) and voltage transformer (VT) to which main meter is connected and shall be used for accounting and billing of electricity in case of failure of main meter; (10) "COD" or "Commercial Operation Date" or "Date of commercial operation" means the date on which the generating plant is synchronised with the grid

system;(11)"Commission" means the Joint Electricity Regulatory Commission for the State of Goa and Union Territories (except Delhi);(12)"Conduct of Business Regulations" means Joint Electricity Regulatory Commission (Conduct of Business) Regulations, 2009, as amended from time to time;(13)"Control Period" means the period during which the norms for determination of tariff specified in these Regulations shall remain in force;(14)"Contracted load" or "Contract demand" means the maximum demand in kW, kVA or HP, agreed to be supplied by the Licensee and indicated in the agreement executed between the Licensee and the consumer;(15)"Distribution Company/ Distribution Licensee (Discom in brief)" means a person granted a Licence under Section 14 (b) of the Act authorizing him to operate and maintain a distribution system and supply electricity to the consumers in its area of supply(16)"Energy Purchase Agreement" means an agreement executed between the Distribution Licensee and the Project Developer for procurement of power from Renewable Energy Projects in accordance with the provisions of these Regulations;(17)"Existing Renewable Energy Plants", means renewable generating stations, which have achieved COD prior to coming into force of these Regulations;(18)"Gross Calorific Value" or 'GCV' in relation to a fuel used in generating station means the heat produced in kilocalories by complete combustion of one kilogram of solid fuel or one litre of liquid fuel or one standard cubic meter of gaseous fuel, as the case may be;(19)"Gross Station Heat Rate" or 'SHR' means the heat energy input in kilocalories required to generate one kilowatt-hour (kWh) of electrical energy at generator terminals of a thermal generating station;(20)"High Tension (HT)" means a voltage level above 440 Volts;(21)"Installed capacity" or "IC" means the summation of the name plate capacities of all the units of the generating station or the capacity of the generating station (reckoned at the generator terminals), approved by the Commission from time to time;(22)"Inter-connection Point" shall mean interface point of renewable energy generating facility with the transmission system or distribution system, as the case may be:i. in relation to wind energy projects and solar photovoltaic projects, inter-connection point shall be line isolator on outgoing feeder on HV side of the pooling sub-station;ii. in relation to small hydro power, biomass power and solar thermal power projects, the interconnection point shall be line isolator on outgoing feeder on HV side of generator transformer;(23)"Island area" means Andaman and Nicobar Islands and Lakshadweep under the jurisdiction of the Commission;(24)"Licence" means a licence granted under Section 14 of the Act;(25)"Low Tension (LT)" means the voltage of 230 volts between the phase and neutral or 440 volts between any two phases under normal conditions subject to the percentage variation permissible from time to time;(26)"Mainland area" means all areas other than Island areas falling under the jurisdiction of the Commission;(27)"Maximum Demand" means the highest load measured in average kVA or kW at the point of supply of a consumer during any consecutive period of 30 (thirty) minutes time block or as provided by the Commission, during the billing period;(28)"MNRE" means the Ministry of New and Renewable Energy of the Government of India;(29)"Municipal Solid Waste" or "MSW" means and includes commercial and residential wastes generated in a municipal or notified areas in either solid or semi-solid form excluding industrial hazardous wastes but including treated bio-medical wastes;(30)"Operation and Maintenance expenses" or 'O&M expenses' means the expenditure incurred on operation and maintenance of the project, and includes the expenditure on manpower, repairs, spares, consumables, insurance and overheads;(31)"Plant Load Factor or (PLF)" in relation to a generating station for a given period means the total sent out energy corresponding to scheduled generation during the period, expressed as a percentage of sent out energy corresponding to installed capacity

in that period and shall be computed in accordance with the following formula:
$$NPLF = 10000 \times \frac{SG_i}{N \times IC \times (100 - AUX_n)} \%$$
 Where, IC = Installed Capacity of the generating station or unit in MW, SG_i = Scheduled Generation in MWh for the i th time block of the period, N = Number of time blocks during the period, and AUX_n = Normative Auxiliary Energy Consumption as a percentage of gross energy generation;

(32) "Plasma Gasification" is a non-combustion, non-thermal (cold) as well as thermal (hot) process using plasma, which converts organic and inorganic matter into syngas (synthesis gas primarily made up of Hydrogen and Carbon monoxide), Potable water and Green fuel. A plasma is created to ionize gas and convert waste matter into syngas, which is channelized to generate power through Brayton Heat Cycle.

(33) "Project" means a generating station or the evacuation system up to inter-connection point, as the case may be, and in case of a small hydro generating station includes all components of generating facility such as dam, intake water conductor system, power generating station and generating units of the scheme, as apportioned to power generation;

(34) "Refuse derived fuel" or "RDF" means segregated combustible fraction of solid waste other than chlorinated plastics in the form of pellets or fluff produced by drying, de-stoning, shredding, dehydrating, and compacting combustible components of municipal solid waste that can be used as fuel;

(35) "Renewable Energy" or "RE" means the grid quality electricity generated from renewable energy sources;

(36) "Renewable Energy Power Plants" means the power plants other than the conventional power plants generating grid quality electricity from renewable energy sources;

(37) "Renewable Energy Sources" means renewable sources such as small hydro, wind, solar including its integration with combined cycle, biomass, bio fuel cogeneration, urban or municipal waste and other such sources as approved by the MNRE;

(38) "Small Hydro" means Hydro Power projects with a station capacity up to and including 25 MW;

(39) "Solar PV power" means the Solar Photo Voltaic power project that uses sunlight for direct conversion into electricity through Photo Voltaic;

(40) "Solar Thermal power" means the Solar Thermal power project that uses sunlight for direct conversion into electricity through Concentrated Solar Power technology based on either line focus or point focus principle;

(41) "Tariff period" means the period for which tariff is to be determined by the Commission on the basis of norms specified under these Regulations;

(42) "Tariff Order" in respect of a Licensee means the last order in force issued by the Commission for that Licensee indicating the tariff to be charged by the Licensee from various categories of consumers for supply of electricity;

Explanation. - Any Distribution Licensee, Transmission Licensee and generating Units connected to the distribution system and the person availing open access in transmission or distribution system are also included in this term;

(43) "Tidal Power" means the Tidal power projects, which use the energy obtained from tidal waves to generate electricity;

(44) "Useful Life" in relation to a unit of a generating station including evacuation system shall mean the following duration from the date of commercial operation (COD) of such generation facility, namely: -

(a) Wind energy power project	25 years
(b) Biomass power project with Rankine cycle technology	20 years
(c) Small Hydro Plant	35 years
(d) Municipal Solid Waste (MSW)/ and Refuse Derived Fuel (RDF) based power project	20 years
(e) Solar PV/Solar thermal power project With or without Energy Storage	25 years
(f) Hybrid Wind and Solar	25 years

(g) Biomass Gasifier based power project 20 years

(h) Biogas based power project 20 years;

(45) "Year" means a financial year. 2.5 Save as aforesaid and unless repugnant to the context or if the subject matter otherwise requires, words and expressions used in these Regulations and not defined hereunder, but defined in the Act, or other Regulations issued by the Commission shall have the meanings assigned to them respectively in the Act or any other Regulations issued by the Commission.